

pleaded for a commendam only in virtue of the royal prerogative. Finally, the King asserted that neither of the parties required expedition, and told these learned and reverend judges, that their letter to him was "couched indecently, and failed in the form."

Upon this, they all kneeled, confessed themselves in error, and solicited pardon. But with regard to the facts of the case, Coke manfully stood his ground on behalf of his brethren, contending that his Majesty's command for staying the proceedings was a delay of justice, against the law, and contrary to their oaths; moreover, that as they intended to manage the proceedings, the King's prerogative would not have been concerned.

The King told them, in reply, that for judges of the law to pronounce whether his prerogative was concerned or not, was very preposterous management; and his Majesty then required Lord Ellesmere, the Chancellor, to declare whether he, that is, the King, or the judges best understood the law, and the oath of a judge.

Ellesmere had no anxiety to set his opinion above that of the common law judges; he therefore referred the matter to the King's Counsel.

The Attorney-General, the great Bacon, had no such diffidence to deter him in this case; he